

24NNCV06484 24NNCV06484

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C07%2F17%2F2026

Source SHA-256: abc4228aebb52c5837011bc62ba258cc47eb7058f947a00464c0355874c043cf

Case Number: 24NNCV06484 Hearing Date: July 17, 2026 Dept: T

Ruth Calichman vs. Sunrun,
Inc., a Delaware Corporation, et al.

Motion for
Summary Judgment, or in the Alternative, Summary Adjudication

Moving Party: Defendant
Sunrun Installation Services, Inc.

Responding Party: Plaintiff
Ruth Calichman

Tentative Ruling: Deny

BACKGROUND

On January 14, 2025, Plaintiff Ruth Calichman ("Plaintiff") filed a first amended complaint ("FAC") against Defendants Sunrun Installation Services, Inc. ("Defendant"), Freedom Forever, LLC ("Freedom Forever"), Argonaut Insurance Company, Philadelphia Indemnity Insurance Company, American Contractors Indemnity Company, and Does 1 to 30, alleging the following causes of action: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; (3) breach of contract–arbitration; (4) negligence; (5) breach of implied warranty; (6) breach of express warranty; and (7) recovery of contractor's license bond.

This action arises from an alleged written agreement between Plaintiff and Defendant for the design and

installation of a solar-panel system at a residential property located at 1879
Brigden Road, Pasadena, California 91104 (the "Property"). (FAC ¶¶ 1–2, 18; id. ¶
18, Exh. A.)

Defendant now moves for summary judgment, or in the
alternative, summary adjudication as to the following issues: (1) Plaintiff's
causes of action are all barred by the one-year contractual limitations period;
(2) Plaintiff cannot establish evidence to support any breach of a contractual
obligation by Defendant; (3) Plaintiff cannot establish evidence to support any
bad faith conduct or unfair dealing by Defendant; (4) Plaintiff's causes of
action are all barred by the well-established rule of non-liability for
employer/hiring entities based on the acts and omissions of an independent contractor;
and (5) Plaintiff failed to meet her burden of establishing causes of action
for breach of contract and negligence, thereby entitling Defendant to summary
judgment as to all claims.

Plaintiff opposes, and Defendant
replies.

MOVING PARTY POSITION

Defendant
argues that Plaintiff's causes of action are barred by the contractual one-year
limitations period, as this contractual period is enforceable, and as all her
causes of action accrued upon the date of installation.

Defendant
argues that Plaintiff has no evidence that support a claim of breach of
contract against Defendant under the provisions of their agreement and that any
liability for a deficiency in the installation would be solely attributable to
Freedom Forever as the independent contractor.
In addition, Plaintiff cannot establish any damages caused by Defendant
and offers no evidence that any breach of the agreement's arbitration provision
occurred.

Defendant
argues that Plaintiff's cause of action for breach of the implied covenant of
good faith and fair dealing fails as a matter of law because Plaintiff offered
no evidence that Defendant acted in bad faith or engaged in unfair dealing. Defendant also complied with the express

terms of the agreement.

Defendant

argues that it cannot be held liable for negligence based on Freedom Forever's alleged conduct as it was not present at the Property during the installation, did not perform the alleged injurious acts, and did not direct or control Freedom Forever's placement of the solar-panel system at the Property.

Defendant

argues that the implied warranty claim fails as a matter of law because Plaintiff offers no reliable evidence that the solar-panel system design or installation was defective, unsafe, or inconsistent with industry practice, or that Defendant was responsible for any alleged defect caused by its installation.

Defendant

argues that Plaintiff's express warranty claim fails because no express warranty was breached as Plaintiff cannot identify any admissible evidence demonstrating that Defendant breached any express warranty terms under the agreement or that any alleged damages were caused by Defendant.

Defendant

argues that Plaintiff's claim for recovery on the contractor's license bond fails because Business and Professions Code section 7071.6 is not a general indemnity bond and does not create strict liability, instead permitting recovery only if it is proven that the bonded contractor committed a violation of the Contractors' State License Law or other conduct expressly covered by the bond.

OPPOSITION

Plaintiff

contends there is ample evidence that her causes of action fall within the limitations period as the accrual dates are reasonably disputed, as the mandatory pre-suit mediation in the agreement's arbitration provision establishes ambiguity as to the tolling of the limitations period, and as Defendant is equitable estopped from asserting the limitations defense based on its prelitigation conduct and continuing breaches.

Plaintiff

contends that Defendant's motion improperly relies on the contract between it

and Freedom Forever rather than the installation agreement between Plaintiff and Defendant, as the alleged delegation of Defendant's performance under this agreement did not extinguish its liability for another party's failure to perform.

Plaintiff

contends that a reasonable jury could find that Defendant's promises and conduct before and after the installation process unjustifiably frustrated Plaintiff's right to the benefits of the agreement.

Plaintiff

contends that Defendant is not entitled to summary adjudication on the negligence cause of action as triable exists as to each of the elements underlying this action, including the failure to ensure that the solar-panel system was safely and properly designed and installed, the failure to obtain permits, the failure to ensure proper flashing and roof penetrations, and the refusal to remove the panels or repair the resulting damage.

Plaintiff

contends that Defendant is not entitled to summary adjudication on the express or implied warranty claims as the agreement and other documents contain express warranties that the system would be installed in a good, workmanlike, and code-compliant manner, and as there are enforceable implied warranties of good workmanship and habitability that apply to the installation of the solar-panel system.

Plaintiff

contends that her contractor's license bond claim also presents triable issues as the question of whether Defendant's alleged violation of the specified Business and Profession Code sections is a factual question that cannot be resolved on summary adjudication.

REPLY

Defendant initially responds

that all of Plaintiff's causes of action accrued upon the date of installation given the allegations found in the FAC and reiterates that the limitations clause in the installation agreement is unambiguous and enforceable. Defendant also responds that the equitable estoppel and continuing-breach doctrines relied upon by Plaintiff are inapplicable here and that no triable issue exists as to tolling.

Defendant reiterates its arguments that Plaintiff failed to produce evidence that it breached an obligation under the installation agreement or that its negligent acts or omissions caused any harm to Plaintiff, particularly as Plaintiff failed to submit any expert testimony establishing that the installation was not performed according to the industry's standard of care. Additionally, the doctrine of hirer non-liability still applies as Plaintiff cannot avoid this doctrine by recasting her contract claims as negligence claims.

Defendant also responds that Plaintiff fails to establish any predicate violation necessary to support a contractor's license bond claim against Defendant.

ANALYSIS

I. Legal Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, in line with Aguilar, "[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted." (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

“On

a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Evidentiary

Objections

The Court declines to rule on Plaintiff’s evidentiary objections, as they have no effect on the ruling herein.

III. Discussion

To

start, “[t]he pleadings play a key role in a summary judgment motion” because “the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, emphasis in original.)

Plaintiff

alleges that, on or about June 26, 2023, she entered into a written agreement with Defendant for the design and installation of a rooftop, photovoltaic, solar-panel system on the Property (the “Agreement”). (FAC ¶¶ 1–2, 18; id. ¶ 18, Exh. A (the

“Agreement”).) The roof was not structurally sound enough to support the installation of solar panels on Plaintiff’s property. (Id. ¶ 19.) On or about June 14, 2024, Plaintiff send a demand letter to Defendant to remove the installed solar panel system and repair the damage caused to the Property. (Id. ¶ 22.) On or about September 11, 2024, Plaintiff initiated a Demand for Mediation and Arbitration to Contractor Defendants through the American Arbitration Association (AAA) pursuant to the Agreement (Case Number 01-24-0007-4934) (Id. ¶ 23.)

A. Contractual Limitations Period as Bar to Relief

Defendant initially seeks summary adjudication on the issue of whether all of Plaintiff’s causes of action are time-barred under the contractual one-year limitations period, thus providing a basis for summary judgment of these causes of action.

The following facts are undisputed. On June 26, 2023, the parties executed the Agreement. (Defendant’s Separate Statement of Undisputed Material Facts (“SSUMF”) ¶ 1.) The Agreement provided the following provision: “YOU FURTHER AGREE THAT NO CLAIM, LAWSUIT, OR ANY OTHER LEGAL OR ARBITRATION PROCEEDING IN CONNECTION WITH, ARISING OUT OF, OR IN ANY WAY RELATED TO THIS AGREEMENT MAY BE BROUGHT MORE THAN ONE (1) YEAR AFTER THE INCIDENT GIVING RISE TO SUCH CLAIM, OR AS LIMITED BY APPLICABLE LAW.” (SSUMF ¶ 2.) Although the parties dispute whether the installation was “completed” by Freedom Forever, it is not reasonably disputed that the installation activities took place on September 1, 2023. (Id. ¶ 4.)

In reviewing the submitted evidence, the Court finds that Defendant failed to carry its initial burden of showing that the accrual date for all of Plaintiff’s cause of action was September 1, 2023. “Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’ [Citation.]” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806.) “An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of

action until the plaintiff discovers, or has reason to discover, the cause of action.” (Id. at p. 806.) Although Defendant asserts this accrual date as an undisputed fact based on the recounting of statements made by an individual named Andy Rojo that day regarding his concerns “about ceiling cracks in the master bedroom ceiling and commented that the roof rafters were not where they had expected them to be which resulted in the mounting hardware on some of the panels to not be properly anchored into the rafters,” this recounting of a statement of an individual whose role in the installation and relation to the parties is unestablished by evidence does not provide affirmative evidence of September 3 as the accrual date. (SSUMF ¶ 11; FAC, Exh. B.) Nor does this statement alone establish, as a matter of law, that Plaintiff discovered or should have discovered, her causes of action arising from any acts or omissions by Defendant and Freedom Forever in connection with this installation. Accordingly, as the accrual date of these causes of action is not established by affirmative evidence, the question of whether the contractual one-year limitation period bars Plaintiff’s causes of action cannot be decided as a matter of law. Moreover, the Court notes that Defendant failed to affirmatively plead this defense in answering the FAC. (See, e.g., 20th Century Ins. Co. v. Superior Court (2001) 90 Cal.App.4th 1247, 1273 [“In other words, because the limitations period operates as an affirmative defense which is inoperative until certain conditions are met (i.e., it is properly plead and accepted by a court) it cannot be deemed a vested right.”].)

Thus,
summary adjudication of this issue is denied.

B. Absence of Evidence

Defendant
next seeks summary adjudication of issues concerning the alleged breach of contract and breach of implied covenant of good faith and fair dealing causes of action because Plaintiff cannot and does not possess evidence to support these causes of action.

If a
defendant seeks summary judgment by showing the absence of evidence on a critical element of the plaintiff’s claim, “[t]he defendant must show that the

plaintiff does not possess needed evidence, because otherwise the plaintiff might be able to establish the elements of the cause of action; the defendant must also show that the plaintiff cannot reasonably obtain needed evidence, because the plaintiff must be allowed a reasonable opportunity to oppose the motion.” (Aguilar, *supra*, 25 Cal.4th at p. 854, *italics in original*.) To make this showing, a defendant must “present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence” to establish any elements of the underlying causes of action. (*Ibid.*) Moreover, under this approach, “a defendant’s initial evidentiary showing may ‘consist of the deposition testimony of the plaintiff’s witnesses, the plaintiff’s factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.’ [Citation.]” (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1102.)

In reviewing the submitted evidence, the Court finds that Defendant failed to present evidence showing that Plaintiff does not possess and cannot reasonably obtain needed evidence to establish any element of these causes of action. Defendant’s initial evidentiary showing does not consist of any deposition testimony from Plaintiff’s witnesses, factually devoid discovery responses, or admissions by Plaintiff in deposition or in response to requests for admission that she has not discovered anything that supports an essential element of these causes of action. Defendant instead appears to assert that Plaintiff has no evidence to support such elements, Defendant improperly asks the Court to grant summary adjudication on this basis without presenting evidence that Plaintiff does not possess and cannot reasonably obtain this necessary evidence. (See, e.g., Zoran Corp. v. Chen (2010) 185 Cal.App.4th 799, 808 [“Taking this approach required [the defendant] to support his motion with evidence that [the plaintiff] did not possess, and could not reasonably obtain, the necessary evidence to show that [the defendant] had personally promised to be responsible for paying the defendant entities’ debts or that he was liable as their alter ego. It was not enough simply to assert that [the plaintiff] had no evidence supporting an element of each cause of action.”].)

Accordingly, the Court finds that Defendant failed to carry its initial burden of proof on not only this issue for summary adjudication but as to its request for summary adjudication of the implied and express warranty claims.

Thus,
summary adjudication of these issues is denied.

C. Negligence

Defendant

next seeks summary adjudication on the issue of whether application of the rule of hirer non-liability for the acts and omissions of an independent contractor entitles it to summary judgment on all causes of action, including negligence.

The

elements of a cause of action for negligence are: (1) a duty on the part of defendant toward plaintiff; (2) defendant's breach of that duty; and (3) harm to the plaintiff caused by that breach.

(Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1142.) "When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely." (Sandoval v. Qualcomm Incorporated (2021) 12 Cal.5th 256, 269.) "A presumptive delegation of tort duties occurs when the hirer turns over control of the worksite to the contractor so that the contractor can perform the contracted work. Our premise is ordinarily that when the hirer delegates control, the hirer simultaneously delegates all tort duties the hirer might otherwise owe the contract workers. [Citations.]" (Id. at p. 271.) "Whatever reasonable care would otherwise have demanded of the hirer, that demand lies now only with the contractor. If a contract worker becomes injured after that delegation takes place, we presume that the contractor alone — and not the hirer — was responsible for any failure to take reasonable precautions." (Ibid.)

"That said, this presumption gives way to the two recognized exceptions that apply where delegation is either ineffective or incomplete" (Ibid.) " In Kinsman, we articulated the rule that a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. [Citation.]" (Ibid.) "And in Hooker, we articulated the rule that a hirer owes a duty to a contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker's injury. [Citation.]" (Ibid.)

Although the
submitted evidence shows that a presumption of delegation of tort duties

applies to Defendant's hiring of Freedom Forever to perform the subcontractor work for "the design, engineering, procurement, installation, and construction" of the solar-panel system on the Property, Defendant fails to cite any legal authority to support its position that the application of the Privette doctrine would preclude liability based on any non-delegable duty owed by Defendant under the agreement or statutory requirements for bonded contractors. Nor does Defendant offer any authority that would preclude recovery on any of the contractual or warranty causes of action based on a presumptive delegation of any tort duties it may have owed to Defendant. (Sandoval, *supra*, 12 Cal.5th at p. 270, emphasis added ["Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a "strong policy" of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor."].)

Thus, as Defendant failed to make a *prima facie* showing that it "is entitled to summary judgment on all counts in the Complaint on the basis that the well-established California rule of employer/hiring entity non-liability for the acts and omissions of an independent contractor, and as Defendant specifies that this is the issue sought for summary adjudication in its notice of motion, summary adjudication of this issue is denied. (See, e.g., Maryland Cas. Co. v. Reeder (1990) 221 Cal.App.3d 961, 974, fn. 4.)

D. Remaining Issues and Causes of Action

As to the remaining issue for summary adjudication regarding Plaintiff's failure to meet her burden to establish causes of action for breach of contract and negligence, and as such, entitling Defendant to summary "as to all claims, or in the alternative, summary adjudication," the Court finds that Defendant similarly fails to meet its initial burden of showing this failure entitles it to relief as to all causes of action.

Defendant also argues that Plaintiff's implied and express warranty claims fail as a matter of law based on the unsupported assertion that Plaintiff does not have evidence that the design or installation of the solar-panel system was defective, unsafe, or inconsistent with industry practice, or that there were any material

defects associated with the installation or material errors related to the work under the Agreement's warranty of workmanship.

However, the Court initially notes that Defendant failed to seek summary adjudication of these specific causes of action in its notice of motion. (Cal. Rules of Court, rule 3.1350 ["If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."].) Even if the Court could properly consider these causes of action, because Defendant relies on the absence of evidence as the basis for summary adjudication, Defendant likewise fails to make a prima facie showing that Plaintiff does not possess and cannot reasonably obtain the necessary evidence for establishing the elements of these claims. In addition, as Defendant seeks summary adjudication of the contractor's license bond claim not specified in the notice of motion, the Court finds that the failure to provide notice as to this cause of action warrants denial.

Thus,
summary adjudication of this issue and these causes of action is denied.

Therefore,
given the presence of triable issues of material fact as to the applicability of the contractual limitations period and other affirmative defenses to liability as to all of Plaintiff's cause of action, and as Defendant failed to carry its initial burden of showing that these causes of action cannot be established by Plaintiff, summary judgment is denied.

RULING

Defendant
Sunrun
Installation Services, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication is DENIED.